

# STATE OF NEW YORK

8666--A

Cal. No. 416

## IN SENATE

January 7, 2026

Introduced by Sen. MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the general business law, in relation to restricting youth sports organizations and youth sports facilities from prohibiting attendees of youth sports events from recording personal media

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new article 41-A to read as follows:

### ARTICLE 41-A YOUTH SPORTS

#### Section 1050. Definitions.

#### 1051. Youth sports organization in-person recording and photography restrictions.

#### § 1050. Definitions. As used in this article:

1. "Youth sports facility" means any indoor or outdoor venue in the state of New York that hosts youth sports events.

2. "Youth sports event" means any organized athletic event, game or competition in which the majority of participants are under the age of eighteen.

3. "Youth sports organization" means any entity that organizes, manages, governs, hosts or runs youth sports events.

4. (a) "Personal media" means video or still photography captured by an attendee at a youth sports event from a physical location inside the youth sports facility using a personal device.

(b) "Personal media" shall not include commercial livestreaming, broadcasting, or professional-grade filming.

5. "Professional media package" means any commercially offered subscription, pay-per-view access, photography service, or streaming product.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD14142-02-6

1 § 1051. Youth sports organization in-person recording and photography  
2 restrictions.

3 1. Youth sports organizations and youth sports facilities shall not:

4 (a) prohibit, restrict, or penalize an attendee for creating personal  
5 media at any youth sports event at which spectators are permitted,  
6 except where permissible pursuant to subdivision three of this section;

7 (b) impose or enforce a rule involving a penalty because an attendee  
8 recorded any portion of a youth sports event, including but not limited  
9 to disqualification or loss of registration privileges;

10 (c) require the separate purchase of a professional media package as a  
11 condition of usage of a youth sports facility, player registration, team  
12 entry, team membership, enrollment, or spectator admission;

13 (d) bundle or embed a professional media package into registration  
14 fees, tournament fees, membership fees, admission charges, or other  
15 similar fees or payments without separately, clearly, and conspicuously  
16 itemizing the cost of the package at the time of registration; or

17 (e) maintain, offer, or enter into, a waiver, contract, registration  
18 form, agreement, rule, or policy that conflicts with the requirements of  
19 this article.

20 2. Prior to registration or entry for a youth sports event, where a  
21 professional media package is made available to attendees, youth sports  
22 organizations shall conspicuously disclose in writing:

23 (a) whether the professional media package is optional;

24 (b) the full price of any offered media services in connection with  
25 the professional media package; and

26 (c) the identity of the professional media package vendor and any  
27 affiliated relationship between such vendor and the youth sports organ-  
28 ization or youth sports facility.

29 3. A youth sports organization or youth sports facility may impose  
30 restrictions on the capturing of personal media where:

31 (a) the youth sports organization has a documented safety or privacy  
32 rationale, unrelated to commercial interest;

33 (b) there are specific zones, such as locker rooms or staging areas  
34 where the general public is not permitted; or

35 (c) there is a uniform restriction on all attendees, unrelated to the  
36 purchase of a professional media package.

37 4. Nothing in this article shall be construed as prohibiting a youth  
38 sports organization or youth sports facility from entering into exclu-  
39 sive arrangements with professional media vendors for the commercial  
40 broadcast or streaming of youth sports events, provided that such  
41 arrangements do not form the basis for any prohibition on the capturing  
42 of personal media.

43 5. Nothing in this article shall alter existing state or federal laws  
44 governing the commercial use of a minor's image or likeness. Youth  
45 sports organizations may continue to require parental consent for the  
46 publication of a minor athlete's photograph or video in organizational  
47 media, websites, or promotional materials, establish reasonable social  
48 media policies governing the posting of athletes' images by third  
49 parties or enforce prohibitions on the recording of minors in private  
50 areas.

51 6. This article shall not apply to:

52 (a) interscholastic athletic programs organized, operated, or governed  
53 by a public or private elementary or secondary school, school district,  
54 board of cooperative educational services or state athletic association  
55 governing school-based sports; or

1 (b) athletic programs organized or sanctioned by the United States  
2 Olympic and Paralympic Committee or any national governing body desig-  
3 nated under the Ted Stevens Olympic and Amateur Sports Act, 36 U.S.C. §  
4 220501.

5 7. Any person who has been injured by reason of any violation of this  
6 article may bring an action in their own name to enjoin such unlawful  
7 act or practice, an action to recover such person's actual damages or  
8 two hundred dollars, whichever is greater. The court may, at its  
9 discretion, increase the award of damages to an amount not to exceed  
10 three times the actual damages if the court finds the defendant willful-  
11 ly or knowingly violated this section. The court may award reasonable  
12 attorney fees to a prevailing plaintiff.

13 § 2. This act shall take effect on the ninetieth day after it shall  
14 have become a law.